

IP Attorney Brief

Human Agile / Agile Fragile: clearance and filing strategy

Prepared for: Anjish Bhondwe | Date: 11 July 2026

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Purpose: Pre-filing TM and copyright strategy | Desk search: 11 July 2026

Desk research only. Formal clearance via official databases (IP India, USPTO, WIPO BrandDB, EUIPO) still required before filing.

1. Marks to protect (priority order)

Priority	Mark	Type	Proposed use
1	HUMAN AGILE	Word mark	Methodology brand, consulting, training
2	HUMAN AGILE INDEX	Word mark	Diagnostic tool, assessment, workshops
3	AGILE FRAGILE	Word mark (+ logo)	Site name, publishing hub, consultancy brand
4	HUMAN AGILE MODEL	Word mark (optional)	Specification title, formal methodology name

Supporting terms (copyright/glossary, not priority TM): Dark Agile, Forced Agile, Fake Agile

2. Nice Classification (recommended)

Class	Services to list
35	Business and management consulting; organisational transformation consulting; advisory services relating to agile adoption and scaling
41	Training, workshops, seminars, coaching; publication of educational materials; non-downloadable online educational content
42	Software as a service for organisational assessment and scoring (only if/when Index ships as SaaS)

Question for counsel: Confirm whether Class 42 is needed now or deferred until software launch.

3. Jurisdictions (filing sequence)

1. India first (Form TM-A via IP India) as base mark

2. Madrid Protocol (Form MM2 via IP India) designating: United States, European Union, United Kingdom, Australia, Singapore, United Arab Emirates, Canada

Question for counsel: Advise on additional designations based on target markets.

4. Desk search findings

No exact blocking mark found for: Human Agile; Human Agile Index; Agile Fragile (exact phrase).

Name	Location	Activity	Risk
Agile Humans	Serbia (since 2019)	Agile training, certification	Medium
Humanly Agile	Australia (Jun 2025)	AI/transformation consulting	Medium
Fragile to Agile	Australia (since 2009)	Enterprise architecture consulting	Medium
agile-fragile.com	Switzerland	Art therapy (different industry)	Low-Medium
ACT 1 Group marks	USA	Staffing/HR; opposes Agile* marks	US opposition risk

Descriptive / prior-use: "Agile or Fragile" widely used; "Dark Agile" in academic literature (Bjorn, 2019) and training.

Patents: No patent found on Human Agile methodology or Human Agile Index. Related patents are technical ML/agile systems only. No methodology patent planned unless assessment software is built.

5. Risk summary

Asset	Protection	Risk	Main issue
Human Agile Model	Copyright yes; Patent no; TM yes	Low-Medium	Agile Humans, Humanly Agile
Human Agile Index	Copyright + TM	Low	No exact conflict
Human Agile	TM	Low-Medium	Similar marks; descriptiveness
Agile Fragile	TM + copyright	Medium-High	Descriptive phrase; Fragile to Agile
Dark/Forced/Fake Agile	Copyright on definitions	Medium	Prior use of Dark Agile

6. Copyright (parallel track)

Work	Status	Action requested
human-agile-model-specification.md	Published, copyright claimed	Register via Form XIV (literary work)
Site pages	Published	Register as literary/artistic work or compilation
Human Agile Index	Published in spec	Include in copyright filing

7. Questions for counsel

1. Is Human Agile registrable in India Classes 35/41 given similar marks?
2. Is Agile Fragile likely to face descriptiveness refusal?
3. Can we register Dark Agile as a TM, or keep as glossary only?
4. US filing risk: opposition from ACT 1 Group or similar Agile* owners?
5. Should Human Agile Model be a separate application?
6. Madrid designations: minimum viable set for year one budget?
7. Copyright registration: one application for spec, or spec + site separately?

8. Client position on patents

No patent filing planned for methodology, Index, or four-move framework.

Patent review requested only if client builds novel assessment software (SaaS scoring engine).

9. Suggested immediate actions

Action	Timeline
File India TM: HUMAN AGILE (Classes 35, 41)	ASAP
File India TM: HUMAN AGILE INDEX (Classes 35, 41)	ASAP
File India TM: AGILE FRAGILE (Classes 35, 41)	After counsel review
Copyright registration (spec)	Within 30 days

Madrid Protocol extension	After India application filed
Use TM symbol on all three marks on site until registered	Immediate

10. Documents counsel may request

- Spec: <downloads/human-agile-model-specification.md> (also at agilefragile.com/model.html)
- Site URLs: agilefragile.com (home, model, leaders, how-we-work)
- Author ID and address proof
- Logo/wordmark files (if device mark filed for Agile Fragile)
- Intended goods/services description in counsel's wording

Prepared from desk research conducted 11 July 2026. Not legal advice. Copyright 2026 Anjish Bhondwe.

Official search portals: IP India TM Search, WIPO Global Brand Database, USPTO Trademark Search, EUIPO eSearch.